

Court No. - 3

Case :- WRIT - C No. - 8787 of 2018

Petitioner :- Balendra

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Kumar

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

The petitioner has preferred this writ petition against the recovery certificate dated 26.12.2017 by which a demand of Rs.1,67,688/- has been raised and sought to be recovered from the petitioner as electricity charges.

The pleadings in the petition do not in any manner demonstrate that any illegality has been committed in issuing the above recovery against the petitioner.

The petitioner through this writ petition only wants that some easy instalments be fixed for payment of the aforesaid amount.

Clause 6.14 of the U.P. Electricity Supply Code 2005 provides for the facility of instalments to the consumer to be extended by the licensee i.e. the Executive Engineer.

In view of the above, the petitioner has an alternative remedy of approaching the Executive Engineer for the purposes of fixation of instalments.

Thus, under the present facts and circumstances of the case, relegating the petitioner to the above alternative remedy, we direct the petitioner to deposit Rs.67,688/- by 31st March, 2018 and to approach the Executive Engineer for fixing the instalments. The payment of remaining amount shall be made as per the instalments so fixed by the Executive Engineer.

The petitioner may file representation for fixing instalments within two weeks which shall be decided by the Executive Engineer within a month thereafter and for a period of two months from today no recovery shall be made provided the the above amount is deposited as directed.

The writ petition is disposed of.

Order Date :- 15.3.2018

Brijesh